

No interference with Section 126 provisional assessment absent patent illegality

High Court of Judicature at Allahabad · Division Bench · 28 August 2024 · 2024:AHC:138197-DB · WRIT - C No. - 27963 of 2024 · **Writ disposed; no interference with the s.126 provisional assessment; objections to be decided under the Act and Supply Code.**

HEADNOTE

The Allahabad High Court declined to interfere with a notice of provisional assessment under Section 126 of the Electricity Act, 2003, finding no patent illegality or jurisdictional error, and left the consumer to file an objection to be decided under the Act and the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Ruchi Dwivedi petitioned the Allahabad High Court against a notice of provisional assessment dated 6 September 2023 issued by the Electricity Department under Section 126 of the Electricity Act, 2003. She sought a writ against that notice. The State and electricity authorities were respondents. Counsel could not identify any patent illegality or jurisdictional error in the notice. The assessment was still at the provisional stage when the Division Bench heard the writ on 28 August 2024.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional assessment — writ interference

HOLDING

A writ court will not interfere with a notice of provisional assessment under Section 126 of the Electricity Act, 2003 in the absence of patent illegality or jurisdictional error. The consumer may file an objection, which the assessing officer must decide in accordance with the procedure prescribed under the Act and the Electricity Supply Code, 2005. ¶ 2-3

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE SECTION 126 ASSESSMENT

No finding on unauthorized use or quantum; the petitioner was left to file a statutory objection. ¶ 2-3